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No. 1958/5 – TUESDAY, MARCH 15, 2016

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PART I: SECTION (I) – GENERAL

Government Notifications

My No.: IR/13/ 22/ 2008.

**THE INDUSTRIAL DISPUTES ACT, CHAPTER 131 OF THE LEGISLATIVE ENACTMENTS OF CEYLON
(1956 REVISED EDITION)**

Order under Section 4 (1)

WHEREAS AN industrial dispute in respect of the matter specified in the statement of the Commissioner of Labour which accompanies this order exists between –

No. 223, Employees inclusive of Mr. A. Hewagama, “Vikumsiri”, Gurukanda, Kathaluwa, Ahangama, of the one part

and

Southern Provincial Road Development Authority, No. 19, Lower Dickson Road, Galle, of the other part.

NOW THEREFORE I, Welatantirige Don John Seneviratne, Minister of Labour and Trade Union Relations do by virtue of the powers vested in me by Section 4(1) of the Industrial Disputes Act, Chapter 131 of the Legislative Enactments of Ceylon (1956 Revised Edition), as amended by Act, Nos. 14 of 1957, 4 of 1962 and 39 of 1968 (read with Industrial Disputes (Special Provisions) Act, No. 37 of 1968), hereby appoint. Mr. S. M. S. Jayawardena, No. 213, First Lane, Egodawatta, Boralesgamuwa to be the arbitrator and refer the aforesaid dispute to him for settlement by arbitration.

W. D. J. SENEVIRATNE,
Minister of Labour and Trade Union Relations.

Colombo,
09th February, 2016.



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**THE INDUSTRIAL DISPUTES ACT, CHAPTER 131 OF THE LEGISLATIVE ENACTMENTS OF CEYLON
(1956 REVISED EDITION)**

No. 223, Employees inclusive of Mr. A. Hewagama, "Vikumsiri", Gurukanda, Kathaluwa, Ahangama, of the one part

and

Southern Provincial Road Development Authority, No. 19, Lower Dickson Road, Galle, of the other part.

STATEMENT OF MATTER IN DISPUTE

The matter in dispute between the aforesaid parties is -

Whether the claim made by the 223 employees mentioned in the Schedule attached hereto, to obtain the monthly allowance decided by the Director Board of the Southern Provincial Road Development Authority on 11.02.2013 and to receive the monthly incentive which is said to have been paid from January 1998 in accordance with a decision of the Southern Provincial Board of Ministers for the period from January 2007 to August 2013 is just and if so to what reliefs they are entitled.

M. D. C. AMARATHUNGE,
Commissioner of Labour.

Dated at the Office of the Commissioner of Labour,
Colombo, this 8th day of February, 2016.

1. A. Hewagama
2. K. T. R. Danapala
3. L. C. Janaki Gunathilake
4. A. H. Chandana Kumara
5. P. H. N. S. Priyantha
6. H. K. H. Hemantha
7. A. Rajakaruna
8. V. D. Thilakarathne
9. A. Wickramarachchi
10. L. L. Nishantha
11. G. M. Wimalasena
12. T. L. Premasiri
13. K. G. Somawathi
14. A. K.I.T. Gunathilake
15. J. J. Dharmarathne
16. N. M. Waidyarathne
17. N. Ranathunge
18. Leelangani Epa
19. Ajantha Wickramanayake
20. M. A. G. Thilakarathne
21. N.S. Kawirathne
22. G. P. Premathunge
23. Sarath Ranaweera
24. T. Dayananda
25. H. Rathnayake
26. G. L. Siripala
27. J. Kapila Dhammika
28. W. S. De Silva
29. A. P. Chandra Hemakumari
30. G. A. Senaka Karunasiri
31. M. P. Gunasekara
32. W. Nilani
33. C. W. Karunarathne

34. A. S. A. Wijewardena
35. Chamila D. Nanayakkara
36. G. P. G. Sarath
37. S. D. W. Karunarathne
38. J. A. S. Priyadarshana
39. W. K. Ariyapala
40. Shelton Pathirana
41. J. Lokuhewa
42. G. Amarasiri
43. Jayamini Jayasinghe
44. Padmalatha Napage
45. C. Nagahawatta
46. L. D. H. Karunadasa
47. R. A. Wijepala
48. K. L. Gayan Sanjeewa
49. H. L.P. D. Gunawardena
50. K. G. Indika Chandimal
51. U. G. Kamal Hemantha
52. U. G. Chaminda Kumara
53. C. A. A. Chandranath
54. T. G. Prince
55. N. Bataduwaarachchi
56. H. B. R. Dayarathne
57. G. T. Chamali De Silva
58. M. Pethangoda
59. B. D. Gunawardena
60. P. G. S. Pushpakumara
61. N. Y. S. Manel
62. G. N. Dahanayake
63. N. R. Wickramarachchi
64. T. A. Nishanthi
65. K. G. Piyatissa
66. Shanthi C. Jayawardena
67. M.G. Nayana Thumbowita
68. K. K. G. Jeewani Siriwardena
69. K. A. Lakshman
70. D. W. Thilakarathne
71. M. K. R. Wijewickrama
72. D. L. R. V. De Silva
73. N. L. G. Mendis
74. L. D. Edirisinghe
75. K. E. Danny
76. I. V. C. K. Thilak
77. Amarasiri Jagoda
78. Y. A. Harshana
79. W. G. Buddika Chaminda
80. C. G. Liyanage
81. M. K. S. M. Dias
82. A. V. Amarabandu
83. K. K.S. H. Karunanayake
84. H. K. Renuka Pushpani
85. W. P. Talsika Indrani
86. K. G. Bandusekara
87. J. A. Indika Jagoda
88. W. A. Bandularathne
89. R. Gamage
90. B. P. Arumapperuma
91. K. P. D. Jayalal
92. A. G. Padmakumara

93. K. Kodikara
94. S. K. L. Samarasiri
95. L. W. D. Alwis
96. Sarath Hettiarachchi
97. K. H. Pubudu Chandana
98. W. K. Wimaladasa
99. U. G. I. Swarnalatha
100. G. L. Samarajeewa
101. Y. D. Wijesiri
102. L. L. Chandrasiri
103. Wijesena Liyanage
104. D. G. Jayaneetha
105. K. G. L. P. Dayarathne
106. S. A. Subodhi Chathurani
107. I. Lionel
108. L. G. N. Lanka Samarawickrama
109. Sunil Gunasekara
110. M. A. Indrarathne
111. J. S. N. Mendis
112. H. R. Sunil
113. C. K. R. Piyatissa
114. U. H. Prasanna
115. L. L. Sunil
116. S. H. Wasantha
117. S. N. W. M. Kularathne
118. L. G. A. J. Karunagoda
119. G. K. Gamini
120. E. L. Kulathunge
121. D. Dhanawansha
122. Jayarathne Jagoda
123. K. M. G. D. Chandrani Dias
124. H. K. A. D. De Silva
125. L. H. Sumanasena
126. Swarnamali T. Vithanage
127. W. N. G. Epa
128. H. T. U. Chandrajith
129. L. Senanayake
130. H. D. D. Sudasinghe
131. A. S. N. Dissanayake
132. A. G. N. Pushpalatha
133. T. N. D. Jagathkumara
134. G. D. N. Dias
135. H. Jayasinghe
136. Thushari Geethika
137. A. Ilesinghe
138. I. G. Sudesh Jayantha
139. E. M. G. Anura Priyantha
140. K. K. Ananda
141. Duminda Weerasinghe
142. M. A. C. P. Mabarana
143. N. W. Jagoda Manoj
144. H. A. G. Anura Kumara
145. W. L. W. Pathirana
146. J. G. Gunasena

147. G. G. Samadasa
148. M. K. Nuwan Chaminda
149. W. K. Thilakasiri
150. W. G. Ariyananda
151. P. D. Punchihewa
152. L. Lalith Pushpakumara
153. K. Thilakumara
154. M. G. Chandrapala
155. D. K. R. Siriwijaya
156. K. G. A. P. Raja Karunarathne
157. R. W. T. Nalin De Silva
158. K. H. Lalith Rohana
159. P. P. D. S. Rodrigo
160. W. V. G. Manoma
161. Y. G. Tissa Chamendra
162. G. D. Samanthi
163. M. K. Piyasena
164. S. D. Siripala
165. A. P. Gunasiri
166. D. D. Ranaweera
167. H. A. Dharmapala
168. N. Percy Jagathkumara
169. G. L. Indrani
170. Ramani Hewagamage
171. D. D. Renuka Silva
172. M. S. Dadallage
173. W. P. Lakshmi Deepani
174. G. W. Samintha Dilani
175. M. G. P. Prasadika
176. K. L. Shanthi
177. H. A. Chandrika
178. D. C. De S. Jarathne
179. W. A. J. Sandareka
180. M. Ranathunge
181. N. A. D. R. Malkanthi
182. M. G. Ujitha Rasangi
183. C. K. Rajapaksha
184. K. K. Mali Priyanka
185. H. B. G. Rekumthala
186. G. R. Vidanagamage
187. R. G. B. Chamindani
188. Chithrangani Vidanage
189. Kapila Manjula Opatha
190. T. H. S. Wickramasinghe
191. Dilhani Abeysekara
192. Somasiri Jayasundara
193. R. S. Dharmadasa
194. E. Y. Champika
195. D. L. S. Sirisena
196. P. M. D. Pandiperumaarachchi
197. V. K. Hettiarachchi
198. K. P. Gimhani
199. H. P. Dhammika
200. W. S. Jayasekara

201. B. K. B. Jayasinghe
202. P. K. Ajantha
203. W. A. Wathsala Chathurangani
204. G. P. G. Sarath
205. H. K. Keerthithilaka
206. A. K. K. R. Wellappili
207. L. A. Pathiranage
208. L. P. N. K. Wijethunge
209. Vilson Hettiarachchi
210. Y. V. A. Wajira
211. A. P. Nihal
212. L. H. G. Somatissa
213. K. B. Sumathipala
214. K. B. Chandrasena
215. K. A. Leelarathne
216. P. L. Dilshan Chanaka
217. S. P. Jinadasa
218. W. Kulathunge
219. K. G. N. Premasiri
220. H. W. S. S. Samarawickrama
221. A. P. Chandrasena
222. L. P. Mahindapala
223. N. Wengappuli

04-101

My No.: IR/COM/04/E/2014/89.

**THE INDUSTRIAL DISPUTES ACT, CHAPTER 131 OF THE LEGISLATIVE ENACTMENTS OF CEYLON
(1956 REVISED EDITION)**

Order under Section 4 (1)

WHEREAS AN industrial dispute in respect of the matter specified in the statement of the Commissioner of Labour which accompanies this order exists between –

Mrs. C. K. Jayawardena, No. 25 B, Biyagama Road, Talwatta, Gonawala (W.P.), of the one part

and

State Pharmaceuticals Corporation of Sri Lanka, No. 75, Sir Baron Jayathilaka Mawatha, Colombo 01, of the other part.

NOW THEREFORE I, Welatantirige Don John Seneviratne, Minister of Labour and Trade Union Relations do by virtue of the powers vested in me by Section 4(1) of the Industrial Disputes Act, Chapter 131 of the Legislative Enactments of Ceylon (1956 Revised Edition), as amended by Act, Nos. 14 of 1957, 4 of 1962 and 39 of 1968 (read with Industrial Disputes (Special Provisions) Act, No. 37 of 1968), hereby appoint. Mr. Sarath Liyanage, No. 13/30, Sarvodaya Mawatha, Kesbewa, Piliyandala to be the arbitrator and refer the aforesaid dispute to him for settlement by arbitration.

W. D. J. SENEVIRATNE,
Minister of Labour and Trade Union Relations.

Colombo,
10th March, 2016.

My No.: IR/COM/04/E/2014/89.

**THE INDUSTRIAL DISPUTES ACT, CHAPTER 131 OF THE LEGISLATIVE ENACTMENTS OF CEYLON
(1956 REVISED EDITION)**

Mrs. C. K. Jayawardena, No. 25 B, Biyagama Road, Talwatta, Gonawala (W.P.), of the one part

and

State Pharmaceuticals Corporation of Sri Lanka, No. 75, Sir Baron Jayathilaka Mawatha, Colombo 01, of the other part.

STATEMENT OF MATTER IN DISPUTE

The matter in dispute between the aforesaid parties is -

Whether injustice has been caused to Mrs. C. K. Jayawardena who is working in the post of Junior Manager at the State Pharmaceuticals Corporation of Sri Lanka by the punishments given following the disciplinary inquiry against her and if so, to what reliefs she is entitled.

M.D.C. AMARATHUNGE,
Commissioner of Labour.

Dated at the Office of the Commissioner of Labour,
Colombo, this 29th day of January, 2016.

04 - 102

My No.: IR/COM/04/Q/2014/119.

**THE INDUSTRIAL DISPUTES ACT, CHAPTER 131 OF THE LEGISLATIVE ENACTMENTS OF CEYLON
(1956 REVISED EDITION)**

Order under Section 4 (1)

WHEREAS AN industrial dispute in respect of the matter specified in the statement of the Commissioner of Labour which accompanies this order exists between -

Mr. B. D. Gunawardena, No. 128/26/2, Ranawiru Mawatha, Halpita, Polgasowita, of the one part

and

Southern Provincial Road Development Authority, No. 19, Lower Dickson Road, Galle, of the other part.

NOW THEREFORE I, Welatantirige Don John Seneviratne, Minister of Labour and Trade Union Relations do by virtue of the powers vested in me by Section 4(1) of the Industrial Disputes Act, Chapter 131 of the Legislative Enactments of Ceylon (1956 Revised Edition), as amended by Act, Nos. 14 of 1957, 4 of 1962 and 39 of 1968 (read with Industrial Disputes (Special Provisions) Act, No. 37 of 1968), hereby appoint Mr. S. M. S. Jayawardena, No. 213, First Lane, Egodawatta, Boralesgamuwa to be the arbitrator and refer the aforesaid dispute to him for settlement by arbitration.

W. D. J. SENEVIRATNE,
Minister of Labour and Trade Union Relations.

Colombo,
10th March, 2016.

My No.: IR/COM/04/Q/2014/119.

**THE INDUSTRIAL DISPUTES ACT, CHAPTER 131 OF THE LEGISLATIVE ENACTMENTS OF CEYLON
(1956 REVISED EDITION)**

Mr. B. D. Gunawardena, No. 128/26/2, Ranawiru Mawatha, Halpita, Polgasowita, of the one part

and

Southern Provincial Road Development Authority, No. 19, Lower Dickson Road, Galle, of the other part.

STATEMENT OF MATTER IN DISPUTE

The matter in dispute between the aforesaid parties is -

Whether the claim made by Mr. B. D. Gunawardena who had worked at the Southern Provincial Road Development Authority as an Engineer to be placed in Grade IV with effect from 01.01.1999 and in Grade III with effect from 01.01.2003 is just and if so, to what reliefs he is entitled.

M. D. C. AMARATHUNGE,
Commissioner of Labour.

Dated at the Office of the Commissioner of Labour,
Colombo, this 22nd day of January, 2016.

04 - 103

My No.: IR/22/31/2011(II).

**THE INDUSTRIAL DISPUTES ACT, CHAPTER 131 OF THE LEGISLATIVE ENACTMENTS OF CEYLON
(1956 REVISED EDITION)**

Revocation of Order under Section 4 (1)

WHEREAS by Order made under Section 4 (1) of the Industrial Disputes Act Chapter 131 of the Legislative Enactments of Ceylon (Revised Edition 1956) as amended by Act, Nos. 14 and 62 of 1957, 14 of 1962 and 39 of 1968 read with Industrial Disputes (Special Provisions) Act, No. 37 of 1968 dated 12.03.2015 and published in the Gazette of the Democratic Socialist Republic of Sri Lanka Extraordinary No. 1907/12 dated 23.03.2015 the Industrial Dispute in respect of the matter specified in the statement of the Commissioner of Labour dated 23.02.2015.

Mr. A. W. N. Harischandra Waduge, No. 20, 'Saranath', Thalagahawela, Mugunuwatawana, Chilaw, of the one part

and

Sri Lanka Transport Board, No. 200, Kirula Road, Colombo 05, of the other part.

was referred to Mr. V. Vimalarajah for settlement by arbitration.

AND Whereas it is now deemed expedient that the said Order be revoked, I, W. D. J. Seneviratne, Minister of Labour and Trade Union Relations do hereby revoke the said Order and further make Order that no proceedings be taken upon the said Order dated 12.03.2015.

W. D. J. SENEVIRATNE,
Minister of Labour and Trade Union Relations.

Colombo,
10th March, 2016.

04 - 104/1

My No.: IR/22/31/2011(II).

**THE INDUSTRIAL DISPUTES ACT, CHAPTER 131 OF THE LEGISLATIVE ENACTMENTS OF CEYLON
(1956 REVISED EDITION)**

Order under Section 4 (1)

WHEREAS AN Industrial dispute in respect of the matters specified in the statement of the Commissioner of Labour which accompanies this order exists between -

Mr. A. W. N. Harischandra Waduge, No. 20, 'Saranath', Thalgahawela, Mugunuwatawana, Chilaw, of the one part

and

Sri Lanka Transport Board, No. 200, Kirula Road, Colombo 05, of the other part.

NOW THEREFORE I, Welatantirige Don John Seneviratne, Minister of Labour and Trade Union Relations do by virtue of the powers vested in me by section 4 (1) of the Industrial Disputes Act, Chapter 131 of the Legislative Enactments of Ceylon (1956 Revised Edition), as amended by Act. Nos. 14 of 1957, 4 of 1962 and 39 of 1968 (read with Industrial Disputes (Special Provisions) Act. No. 37 of 1968) hereby appoint Mr. S. Kariyawasam, No. 28, Abeyratne Mawatha, Boralessgamuwa to be the arbitrator and refer the aforesaid dispute to him for settlement by arbitration.

W. D. J. SENEVIRATNE,
Minister of Labour and Trade Union Relations.

Colombo,
10th March, 2016.

My No.: IR/22/31/2011(II).

**THE INDUSTRIAL DISPUTES ACT, CHAPTER 131 OF THE LEGISLATIVE ENACTMENTS OF CEYLON
(1956 REVISED EDITION)**

Mr. A. W. N. Harischandra Waduge, No. 20, 'Saranath', Thalgahawela, Mugunuwatawana, Chilaw, of the one part

and

Sri Lanka Transport Board, No. 200, Kirula Road, Colombo 05, of the other part.

STATEMENT OF MATTER IN DISPUTE

The matters in dispute between the aforesaid parties are.

- I. Whether Mr. A. W. N. Harischandra Waduge who had been working at the Chilaw Depot of the Sri Lanka Transport Board and working at the Puttalam Depot at present after being transferred is entitled to receive arrears in salary from 28.10.2010 to 17.01.2011, the period during which his service was interdicted due to the disciplinary inquiry against him, and if so, to what reliefs he is entitled.
- II. Whether Mr. A. W. N. Harischandra Waduge has been caused injustice by the punishments imposed on him after the disciplinary inquiry against him, and if such injustice has been caused, to what reliefs he is entitled.

M. D. C. AMARATHUNGE,
Commissioner of Labour.

Dated at the Office of the Commissioner of Labour,
Colombo, this 22nd day of January, 2016.

04- 104/2